

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

17. ANGELA SCHULER V. MARTIN SCHULER

23FL0273

Respondent filed a Request for Order (RFO), on January 29, 2026, seeking an order setting aside the default entered on August 1, 2024. Proof of Service shows Petitioner was mail served on January 29, 2026.

Petitioner has not filed a Responsive Declaration.

Petitioner filed a RFO on March 3, 2026, requesting an order to have Petitioner's name removed from Respondent's home title and mortgage. Respondent was served on March 13, 2026.

Petitioner filed a Request to Reschedule on March 11, 2026. The court granted the request on March 12, 2026, and the hearings on both RFO was rescheduled for May 21, 2026, at 1:30 PM in Department 5.

Respondent has not filed a Responsive Declaration to Petitioner's RFO.

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." Cal. Civ. Pro. § 473(b). Family Code section 2122 also vests the court with the authority to set aside a judgment in matters of actual fraud or perjury. Fam. Code § 2122. In either case, the burden is on the moving party to establish grounds for relief. Austin v. L.A. Unified School Dist., 244 Cal. App. 4th 918 (2016); See *also* Fam. Code § 2121 ("Before granting relief, the court shall find that the facts alleged as the grounds for relief materially affected the original outcome and that the moving party would materially benefit from the granting of the relief.") The moving party is tasked with not only establishing that grounds for relief exist but also establishing that the error was *excusable* on the part of the moving party. *Austin* at 929; See *also Huh v. Wang*, 158 Cal. App. 4th 1406, 1419 (2007).

In addition to establishing grounds for relief, the moving party must make its motion within the legally specified time frames. In matters of actual fraud or perjury, the motion shall be brought within one year of the date the moving party either discovered or should have discovered the fraud or perjury; and in instances of mental incapacity, the motion is to be brought within two years. Fam. Code § 2122 (a), (b) & (d).

In the matter at hand, Respondent fails to meet his burden of establishing grounds for relief or set aside. The court finds Respondent has failed to bring the action within the statutory time frame. The court finds Respondent was aware of the divorce proceedings

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and the default was entered on August 1, 2024. Proof of Service shows Respondent was served with the notice of default on August 2, 2024. As such, Respondent's request is denied.

Turning next to Petitioner's request, the court finds Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C). The court grants Petitioner's request. Respondent is ordered to refinance the home located at 5287 Loch Leven Dr. Pollock Pines CA 95762, for the purpose of removing Petitioners' name for the mortgage within 60 days of this order. If Respondent is unable to refinance the residence, he is ordered to place the home for sale on the 61st day with a neutral real estate professional agreed upon by the parties and provide proof of the homes listing to Petitioner's counsel. The court reserves on Petitioner's request under Family Code section 271 for sanctions.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #17: THE COURT FINDS RESPONDENT HAS FAILED TO MEET HIS BURDEN OF ESTABLISHING GROUNDS FOR RELIEF OR SET ASIDE. THE COURT FINDS RESPONDENT HAS FAILED TO BRING THE ACTION WITHIN THE STATUTORY TIME FRAME. THE COURT FINDS RESPONDENT WAS AWARE OF THE DIVORCE PROCEEDINGS AND THE DEFAULT WAS ENTERED ON AUGUST 1, 2024. PROOF OF SERVICE SHOWS RESPONDENT WAS SERVED WITH THE NOTICE OF DEFAULT ON AUGUST 2, 2024. AS SUCH, RESPONDENT'S REQUEST IS DENIED.

THE COURT GRANTS PETITIONER'S REQUEST. RESPONDENT IS ORDERED TO REFINANCE THE HOME LOCATED AT 5287 LOCH LEVEN DR. POLLOCK PINES CA 95762, FOR THE PURPOSE OF REMOVING PETITIONERS' NAME FOR THE MORTGAGE WITHIN 60 DAYS OF THIS ORDER. IF RESPONDENT IS UNABLE TO REFINANCE THE RESIDENCE, HE IS ORDERED TO PLACE THE HOME FOR SALE ON THE 61ST DAY WITH A NEUTRAL REAL ESTATE PROFESSIONAL AGREED UPON BY THE PARTIES AND PROVIDE PROOF OF THE HOMES LISTING TO PETITIONER'S COUNSEL. THE COURT RESERVES ON PETITIONER'S REQUEST UNDER FAMILY CODE SECTION 271 FOR SANCTIONS.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE

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COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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18. Esperanza Woolever v. Christopher Woolever

PFL20180325

Respondent filed a Request for Order (RFO) and Order Shortening Time (OST) on May 14, 2026. On May 15th, the court granted the OST and set the RFO for a hearing on May 21, 2026 at 1:30 PM in Department 5. The court directed Respondent to served Petitioner on May 15, 2026. The court directed Petitioner to file a Responsive Declaration on or before May 19, 2026.

Upon review of the court file, there is no Proof of Service showing Petitioner was properly served.

Petitioner filed a Responsive Declaration on May 19, 2026. It was served the same day. Petitioner does not raise the issue of service therefore, the court deems it to have been waived.

Respondent requests the court issue an order awarding the entirety of the CalSTRS account to Respondent as his sole and separate property in order to facilitate the court's prior orders awarding the child support arrears owed to Respondent by Petitioner to be paid from that account. Petitioner objects to the requested orders.

The court has read and considered the filings as outlined above. The court denies Respondent's request for the reasons outlined in Petitioner's Responsive Declaration. The orders requested are incongruent with the prior orders made by the court reserving on the final characterization of the funds as the parties dispute the date of separation.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: THE COURT DENIES RESPONDENT'S REQUEST FOR THE REASONS OUTLINED IN PETITIONER'S RESPONSIVE DECLARATION. THE ORDERS REQUESTED ARE INCONGRUENT WITH THE PRIOR ORDERS MADE BY THE COURT RESERVING ON THE FINAL CHARACTERIZATION OF THE FUNDS AS THE PARTIES DISPUTE THE DATE OF SEPARATION.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION